



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

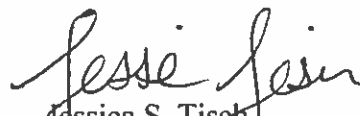
Re: Disciplinary Case No. 2022-24870 / PODS Case No. C-031977 regarding
Sergeant Andrew Fitts

Date: October 21, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Fitts wrongfully used force and provided an inaccurate statement to the CCRB. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Sergeant Fitts will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

May 9, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. Sgt. Andrew Fitts (CCRB Case no. 202003901, DADs no. 2022-24870, Tax no. 938484)*

Commissioner Tisch:

A negotiated settlement of a dismissal of the charges along with Department Imposed Training was agreed upon and signed by all the parties on April 16, 2025. Assistant Deputy Commissioner-Trials, Vanessa Facio-Lince, endorsed the negotiated settlement on May 1, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. The CCRB offered this disposition for the following reasons:

1. Sgt. Fitts agreed to take responsibility for his misconduct.
2. While serving at the Vehicle Identification Unit, Sgt. Fitts has received recognition for Excellent Police Duty one time and Meritorious Police Duty one time; and
3. Sgt. Fitts has also been a member of service for nearly 20 years and the CCRB believes there is great potential for *Training* to correct/rehabilitate the behavior.

Respectfully submitted,

Andre D. Applewhite

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Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: Matthew Schieffer, Esq.